

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
EMILIANO ROSADO,

Plaintiff

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER SAM WU of the 43rd Precinct,**

Defendants.
-----X

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
January 22, 2019



JEFFREY W. RIZZO, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
EMILIANO ROSADO,

Plaintiff,**Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK and
POLICE OFFICER SAM WU of the 43rd Precinct,****Defendants.**

-----X

Plaintiff, EMILIANO ROSADO, by his attorney JEFFREY W. RIZZO, ESQ., principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff EMILIANO ROSADO (“MR. ROSADO”) was a resident of Bronx County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK (“CITY”), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant POLICE OFFICER SAM WU (“WU”) was and still is a Detective or Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (“NYPD”).

4. On and prior to November 3, 2017, WU was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of WU described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

BACKGROUND

6. On or about November 3, 2017 WU, acting as an agent, servant and employee of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. ROSADO of having committed the crime of Attempted Assault in the Third Degree (P.L. § 110/120.00) and related charges.

7. On or about November 3, 2017 Defendants, their agents, servants and/or employees, intentionally placed MR. ROSADO under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

8. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

9. On or about November 3, 2017 a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. ROSADO was commenced.

10. After his arrest, MR. ROSADO was arraigned in Bronx County, Criminal Court on November 3, 2017 at which point he was released on his own recognizance.

11. On January 9, 2018 MR. ROSADO made a court appearance at which time the criminal matter was terminated in favor of MR. ROSADO, in that the case was dismissed and sealed.

12. As a result of the treatment of MR. ROSADO by the Defendants, MR. ROSADO was denied liberty by being falsely arrested, imprisoned and maliciously prosecuted.

13. MR. ROSADO suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested, falsely imprisoned, maliciously prosecuted and detained, MR. ROSADO suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

14. On February 1, 2018, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

15. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

16. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

17. Paragraphs 1-16 are incorporated by reference as fully set forth herein.

18. On November 3, 2017 at approximately 9:00 a.m., inside 1208 Stratford Avenue, Bronx County, Defendants along with other NYPD officers wrongfully touched, grabbed, handcuffed, directed other officers to seize and seized MR. ROSADO, in an excessive manner about his person, causing MR. ROSADO physical pain and mental

suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. ROSADO was aware of his arrest and confinement as described in paragraphs 1-16, and he did not consent to that arrest or confinement, nor was it privileged by law.

19. As a result of being falsely arrested by the Defendants, MR. ROSADO sustained multiple injuries. He was denied liberty and the ability to enjoy life. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. The Defendants, their agents, servants and employees, arrested and confined MR. ROSADO, as described in paragraphs 1-19, and intended to confine MR. ROSADO. MR. ROSADO was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, MR. ROSADO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. On or about November 3, 2017, and from that time until January 9, 2018 when Plaintiff's case was dismissed and sealed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

25. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office, a Grand Jury and/or during a trial to induce prosecution of Plaintiff.

26. The commencement of these criminal proceedings under Docket No. 2017BX042543 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

27. As a result of being maliciously prosecuted by the Defendants, MR. ROSADO was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FOURTH CAUSE OF ACTION: ASSAULT AND BATTERY

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. On November 3, 2017 at approximately 9:00 a.m., inside 1208 Stratford Avenue, Bronx County, Defendant WU, along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MR. ROSADO, in an excessive manner about his person, causing MR. ROSADO physical pain and mental

suffering.

30. That on or about November 3, 2017, and while in the custody of the Defendants in the County of Bronx, City of New York, the Plaintiff MR. ROSADO was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by WU, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

31. That on or about November 3, 2017, WU, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. ROSADO, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. ROSADO and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. ROSADO and caused such battery in and about his chest, body and limbs. At no time did MR. ROSADO consent to the aforesaid assault and battery.

32. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and/or grabbing of MR. ROSADO, was an assault and battery beyond that which was necessary to make the arrest.

33. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular WU, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. ROSADO suffered bodily injury in and about his body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

FIFTH CAUSE OF ACTION

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. Defendant, WU, was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

36. At all times mentioned herein, WU was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

37. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

38. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

39. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his

civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

40. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York.

41. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

42. On or about November 3, 2017 the Defendants, armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

43. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

44. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. Defendants, collectively and individually, while acting under color of state law, ignored and disregarded exculpatory evidence.

49. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to ignore and disregard such alibi evidence during the course of similar arrests and prosecutions, when an ordinarily prudent and reasonable police officer or detective would have investigated similar information prior to arrest and/or prosecution of MR. ROSADO.

50. Defendants, collectively and individually, while acting under color of state law, failed to conduct proper identification procedures in accordance with state law, federal law, and the Constitution of the United States, prior to falsely arresting and subsequently thereafter maliciously prosecuting, MR. ROSADO.

51. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to fail to conduct proper identification procedures in accordance with state law, federal law, and the Constitution of the United States prior to falsely arresting and subsequently thereafter maliciously prosecuting, individuals such as MR. ROSADO, when an ordinarily prudent and reasonable police officer or detective would

have conducted proper identification procedures prior to the arrest and/or prosecution of MR. ROSADO.

52. Defendants, collectively and individually, while acting under color of state law, failed to properly interview and question witnesses, including but not limited to the complaining witness, in accordance with state law, federal law, and the Constitution of the United States prior to falsely arresting and subsequently thereafter maliciously prosecuting, MR. ROSADO.

53. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to fail to properly interview and question witnesses, including but not limited to complaining witnesses, in accordance with state law, federal law, and the Constitution of the United States, prior to falsely arresting and subsequently thereafter maliciously prosecuting, individuals such as MR. ROSADO, when an ordinarily prudent and reasonable police officer or detective would have properly interviewed and questioned witnesses, including but not limited to the complaining witness, prior to the arrest and/or prosecution of MR. ROSADO.

FALSE ARREST UNDER 42 U.S.C. § 1983

54. Paragraphs 1-53 are incorporated by reference as though fully set forth herein.

55. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without probable cause, privilege or consent.

56. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

57. Paragraphs 1-56 are incorporated by reference as though fully set forth herein.

58. Defendants misrepresented and falsified evidence before the District Attorney.

59. Defendants did not make a complete and full statement of facts to the District Attorney.

60. Defendants withheld exculpatory evidence from the District Attorney.

61. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff MR. ROSADO.

62. Defendants lacked probable cause to initiate criminal proceedings against plaintiff MR. ROSADO.

63. Defendants acted with malice in initiating criminal proceedings against plaintiff MR. ROSADO.

64. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff MR. ROSADO.

65. Defendants lacked probable cause to continue criminal proceedings against plaintiff MR. ROSADO.

66. Defendants acted with malice in continuing criminal proceedings against plaintiff MR. ROSADO.

67. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

68. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff MR. ROSADO's favor on or about August 23, 2017.

69. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time and he was put in fear for his safety and humiliated and subjected to handcuffing and other physical restraints all without probable cause.

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

UNDER 42 U.S.C. § 1983

70. Paragraphs 1-69 are incorporated by reference as though fully set forth herein.

71. Defendants created false and intentionally misleading evidence against plaintiff MR. ROSADO.

72. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office.

73. Defendants misled prosecutors by creating false evidence against plaintiff MR. ROSADO and thereafter providing false testimony throughout the criminal proceedings.

74. In creating false evidence against plaintiff MR. ROSADO, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under

the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

UNLAWFUL AND UNREASONABLE

SEARCH UNDER 42 U.S.C. § 1983

76. Paragraphs 1-75 are incorporated by reference as though fully set forth herein.

77. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause, privilege, or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

MUNICIPAL LIABILITY

78. Paragraphs 1-77 are incorporated by reference as though fully set forth herein.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

80. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

84. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained.

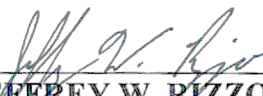
85. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

86. The acts complained of deprived plaintiff of his rights:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;
 - C. To be free from unlawful search;
 - D. Not to have summary punishment imposed upon him; and
 - E. To receive equal protection under the law.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
January 22, 2019

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

EMILIANO ROSADO, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.



EMILIANO ROSADO

Sworn to before me, this 22nd day of January, 2019.



Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



JEFFREY W. RIZZO, ESQ.